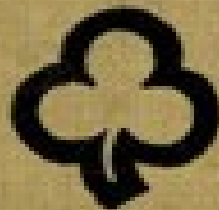


The **Battle of Gettysburg**

**How General Meade Turned the
Army of the Potomac over
to Lieutenant Haskell
See Page 10**



**PUBLISHED BY
THE PHILADELPHIA BRIGADE
ASSOCIATION**

The **Battle of Gettysburg**

**How General Meade Turned the
Army of the Potomac over
to Lieutenant Haskell
See Page 10**



**PUBLISHED BY
THE PHILADELPHIA BRIGADE
ASSOCIATION**

**The Project Gutenberg eBook of Reply of the Philadelphia Brigade
Association to the Foolish and Absurd Narrative of Lieutenant Frank A.
Haskell**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Reply of the Philadelphia Brigade Association to the Foolish and Absurd Narrative of Lieutenant Frank A. Haskell

Author: Philadelphia Brigade Association

Release date: August 30, 2010 [eBook #33585]

Language: English

Other information and formats: www.gutenberg.org/ebooks/33585

Credits: Produced by The Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK REPLY OF THE
PHILADELPHIA BRIGADE ASSOCIATION TO THE FOOLISH AND ABSURD
NARRATIVE OF LIEUTENANT FRANK A. HASKELL ***

BOWERS PRINTING COMPANY
PHILADELPHIA, PA.

REPLY OF THE
PHILADELPHIA BRIGADE
ASSOCIATION

TO THE

FOOLISH and ABSURD NARRATIVE
OF
Lieutenant FRANK A. HASKELL

WHICH APPEARS TO BE
ENDORSED BY
THE MILITARY ORDER OF THE
LOYAL LEGION
COMMANDRY OF MASSACHUSETTS

AND

THE WISCONSIN HISTORY
COMMISSION

COMPLIMENTS OF THE
PHILADELPHIA BRIGADE ASSOCIATION
MARCH, 1910

HEADQUARTERS,
PHILADELPHIA BRIGADE ASSOCIATION,
S. W. COR. FIFTH AND CHESTNUT STREETS,
PHILADELPHIA, PA.

At the stated meeting of the Survivors of the Philadelphia Brigade, Second Brigade, Second Division, Second Corps, Army of the Potomac, held at the above place, Tuesday evening, September 7, 1909, letters were read from Gen. Alexander S. Webb, who commanded the Philadelphia Brigade at the Battle of Gettysburg, July 1, 2 and 3, 1863, requesting the consideration of the Brigade Association to the most astounding misstatements made by First Lieut. Frank Aretas Haskell, 6th Wisconsin Infantry, in a paper said to have been written by him under date of July 16, 1863, two weeks after the

Battle of Gettysburg had been fought and addressed to his brother, who printed it for private circulation about fifteen years afterward.

The letters of Gen. Webb were accompanied by a volume of 94 pages, containing the most absurd statements as to the action of the Philadelphia Brigade at the Battle of Gettysburg, which, upon being read, led to the unanimous adoption of the following preamble and resolution:

“WHEREAS, in the ‘Narrative of the Battle of Gettysburg,’ by Lieut. Frank A. Haskell, First Lieut. 6th Wisconsin Infantry, and an aide upon the staff of Gen. John Gibbon, said to have been written within a few days after the battle, and reprinted in 1898 as a part of the history of the Class of 1854, Dartmouth College, and republished in 1908 under the auspices of the Massachusetts Commandery of the Military Order of the Loyal Legion of the United States, the Philadelphia Brigade has been recklessly, and shamelessly, and grossly misrepresented; therefore, with the view of correcting these wilfull misstatements, it is

“RESOLVED, That a committee consisting of the officers of the Philadelphia Brigade Association, together with two comrades from each of the four regiments of the Brigade, be appointed to carefully consider the matter, and, if deemed advisable by the committee, to publicly enter its protest against the malicious statements ‘reprinted in 1898 as a part of the history of the Class of 1854 of Dartmouth College,’ and again republished by the Loyal Legion of Massachusetts in 1908, with a degree of recklessness and disregard for truth unparalleled in any publication relating to the Civil War; statements so false and malevolent as to be wholly unworthy of a class of Dartmouth College, or of a Commandery of the Loyal Legion of the United States; of the name of Capt. Daniel Hall, of General Howard’s staff—who prepared the story for publication—or of ‘Chas. Hunt, Captain U. S. V., Committee on Publication.’”

The committee named under this resolution consists of these Comrades: Wm. G. Mason, Commander; John Quinton, Vice-Commander; Chas. W. Devitt, Quartermaster; John W. Frazier, Adjutant; John E. Reilly, Wm. S. Stockton, Joseph MacCarroll and James Thompson, Trustees, and Edward Thompson and James Duffy, 69th; John W. Dampman and Edward P. McMahon, 71st; John Reed and Thos. J. Longacre, 72d; Wm. H. Neiler and Thos. Thompson, 106th Regiment, Pennsylvania Volunteers.

An examination by the Philadelphia Brigade Association of the records relating to the “Narrative” written by Lieut. Haskell, discloses these facts:

First—That Lieut. Haskell entered the service in July, 1861, as First Lieutenant of the 6th Wisconsin Infantry, and in June, 1862, became an Aide-de-Camp upon the Staff of Brigadier General John Gibbon, and was serving as such at the time he wrote his “Narrative” of the Battle of Gettysburg. On February 9, 1864, Haskell was commissioned Colonel of the 36th Wisconsin Regiment, which at his request was assigned to the First Brigade, Second Division, Second Corps, Army of the Potomac. The Division was commanded by Gen. Gibbon, Gen. Hancock commanding the Corps. In the advance of

Gibbon's Division at the Battle of Cold Harbor, against a strongly intrenched position, Col. Henry McKeen, who commanded the First Brigade, was killed. Colonel Haskell succeeded to the command, and he, too, fell mortally wounded under the heavy artillery and musketry fire, against which his Brigade advanced. Haskell's record as a soldier of the Civil War is, therefore, an enviable one; but as a writer of events of the war he was absurd, reckless and unreliable.

Second—The manuscript alleged to have been prepared by Lieut. Haskell, as stated by him, "At the Headquarters, second Corps D'Armee, Army of the Potomac, near Harper's Ferry, July 16, 1863," was sent to his brother, who printed it about fifteen years later in a pamphlet of 72 pages for private circulation.

Third—The book was reprinted in 1898 as part of the History of the Class of 1854, Dartmouth College, in honor of Colonel Haskell's memory, but with certain omissions that severely reflected upon the Eleventh Corps, Gen. Sickles and President Lincoln, which are explained in a foot-note by Capt. Daniel Hall, a classmate of Haskell's, who was an Aide upon the Staff of Gen. O. O. Howard, and who prepared the Haskell story for republication.

Fourth—The pamphlet published in 1878, by Haskell's family for private circulation, contained 72 pages; the costly volume published in 1908, under the auspices of the Commandery of Massachusetts, Loyal Legion of the United States, prepared by Captain Daniel Hall, an Aide upon the Staff of Gen. Howard, Commander of the Eleventh Corps, with the official endorsement of "Chas. Hunt, Captain, U. S. V., Committee on Publication" is a book of 94 pages; therefore, apparently containing much more matter than was originally published by the Haskell family in 1878.

The charge of cowardice on the part of the Philadelphia Brigade, purported to have been made by Lieut. Haskell, is printed on pages 60, 61 and 62 of the volume published by the Loyal Legion of Massachusetts, and is in part as follows:

"Unable to find my General, I gave up hunting as useless—I was convinced General Gibbon could not be on the field; I left him mounted; I could have easily found him now had he so remained, but now, save myself, there was not a mounted officer near the engaged lines—and was riding towards the right of the Second Division, with purpose to stop there, as the most eligible position to watch the further progress of the battle, then to be ready to take part, according to my own notions, wherever and whenever occasion presented. The conflict was tremendous, but I had seen no wavering in all our line. Wondering how long the rebel ranks, deep though they were, could stand our sheltered volleys, I had come near my destination, when—great heavens! were my senses mad?—the larger portion of Webb's Brigade—my God, it was true—there by the group of trees and the angles of the wall, was breaking from the cover of the works, and without orders or reason, with no hand uplifted to check them, was falling back, a fear-stricken flock of confusion. The fate of Gettysburg hung upon a spider's single thread. A great magnificent passion came on me at the instant; not one that overpowers and confounds, but one that blanches the face and sublimates every sense and faculty. My sword that had always hung

idle by my side, the sign of rank only, in every battle, I drew, bright and gleaming, the symbol of command. Was not that a fit occasion and those fugitives the men on whom to try the temper of the Solingen steel? All rules and proprieties were forgotten, all considerations of person and danger and safety despised; for as I met the tide of those rabbits, the damned red flags of the rebellion began to thicken and flaunt along the wall they had just deserted, and one was already waving over the guns of the dead Cushing. I ordered those men to ‘halt,’ and ‘face about,’ and ‘fire,’ and they heard my voice and gathered my meaning, and obeyed my commands. On some unpatriotic backs, of those not quick of comprehension, the flat of my sabre fell, not lightly; and at its touch their love of country returned, and with a look at me as if I were the destroying angel, as I might have become theirs, they again faced the enemy. General Webb soon came to my assistance. He was on foot, but he was active, and did all that one could do to repair the breach or to avert its calamity.”

Colonels O’Kane and Tschudy, of the 69th, were killed in action; Baxter, of the 72d, wounded and carried off the field; Morehead and his 106th Regiment had been sent by Gibbon to the support of Howard’s Corps, thereby materially weakening the Brigade; Col. R. Penn Smith, of the 71st, and Lieut. Col. Theo. Hesser, of the 72d, were with their commands—which they never left—encouraging their men to even greater deeds of heroism; Webb is yet living and in a supplemental paper to this Reply will state specifically where the Commander of the Brigade and his Adjutant were and what they did.

While Haskell has long been dead—killed in action at Cold Harbor, in 1864, and it seems cruel to speak harshly of the dead, yet duty to the living, and to the honored dead of the Philadelphia Brigade compels reply. The unreliability of Lieut. Haskell as a writer of military matters was equaled only by the egotism of the youthful Lieutenant. Thus this reckless First Lieutenant wrote of General Howard and General Doubleday, and thus he maligned the brave men of the Eleventh Corps:

“The two divisions of the Eleventh Corps commanded, by Generals Schurz and Barlow, making but feeble opposition to the advancing enemy, soon began to fall back. Back in disorganized masses they fled into the town, hotly pursued, and in lanes, in barns, in yards and cellars, throwing away their arms, they sought to hide like rabbits, and were captured unresisting by hundreds.

“I suppose our losses during the first day would exceed five thousand, of whom a large number were prisoners. Such usually is the kind of loss sustained by the Eleventh Corps.” (Haskell narrative, page 6.)

The actual loss of the Eleventh Corps was 153 officers and 2,138 men killed and wounded, and 62 officers and 1,448 men captured and missing, a total of 3,801, thereby attesting that at least 2,291 brave men of the Eleventh Corps did not “hide like rabbits,” but that they fell like heroes facing the enemy.

And thus of General Doubleday as to his action during Pickett's Charge on the afternoon of the third day:

"Doubleday on the left was too far off, and too slow. On another occasion I had begged him to send his idle regiments to support another line, battling with thrice its numbers, and the 'Old Sumter Hero' had declined." (Haskell narrative, page 62.)

If Haskell, or any other first lieutenant, would dare to have had the impudence to direct a Major General, and he a graduate of West Point, a soldier of distinction in the Mexican War, and placed in command of the First Corps upon the death of Gen. Reynolds, is it not more than likely, indeed, does it not seem certain that such a presumptuous lieutenant would have been sent back to his command under guard, if not committed to the guard house?

And did not Capt. Daniel Hall, an Aide upon General Howard's Staff, who prepared the Haskell "Narrative" for republication; and the Military Order of the Loyal Legion, Commandery of Massachusetts, in publishing the Haskell "Narrative" become responsible for the Haskell slander upon Generals Howard and Doubleday, and the brave men of the gallant Eleventh Corps, and of the Philadelphia Brigade?

The egotism and recklessness of Haskell are in evidence upon almost every page of his book. On page 39 he says:

"I heard General Meade express dissatisfaction at General Geary for making his attack. I heard General Meade say that he sent an order to have the fight stopped, but I believe the order was not given to Geary until after the repulse of the enemy." Is it not clear that if such an order had been sent and obeyed, the enemy would not have been repulsed? Is it anywhere upon record that General Meade sent such an order?

On page 82 of the Haskell "Narrative" of the Battle of Gettysburg appears this silly statement:

"About six o'clock on the afternoon of the third of July, my duties done upon the field, I quitted it to go to the General (meaning Gibbon). My brave horse Dick—poor creature! his good conduct in the battle that afternoon had been complimented by a brigadier—was a sight to see. He was literally covered with blood. Struck repeatedly, his right thigh had been ripped open in a ghastly manner by a piece of shell, and three bullets were lodged deep in his body, and from his wounds the blood oozed and ran down his sides and legs, and with the sweat formed a bloody foam. To Dick belongs the honor of first mounting that stormy crest before the enemy, not forty yards away, whose bullets smote him, and of being the only horse there during the heat of that battle."

Haskell might, with equal truth and egotism, have written: "To Dick and his rider belong the honor of meeting and repulsing Pickett's Division," and who can say that it would not have been accorded equally as generous consideration by the Loyal Legion of Massachusetts, and the History Commission of Wisconsin, as was given to all the other nonsense he wrote of the Battle of Gettysburg.

It has been said of Pickett's Virginians, that accustomed to handling a gun, or rifle, from boyhood, any one of them could kill a jay bird at a distance of 150 yards, but not one of Pickett's Division of 4,000 Veterans could kill that horse or that first lieutenant, and they the only horse and man in sight, and not forty yards away, parading between Hancock's Corps of the Union Army and Longstreet's Corps of the Confederate Army.

Oh! Veterans of Pickett's Division, you who killed or wounded 491 of our Comrades of the Philadelphia Brigade from the time you began one of the most desperate charges ever recorded in the history of wars, starting from Seminary Ridge, one mile distant from the Bloody Angle, until you reached the culminating point where the intrepid Armistead fell mortally wounded within the lines of the Philadelphia Brigade. You who made such slaughter in OUR RANKS AT LONG RANGE could not kill First Lieutenant Frank Aretas Haskell, or his horse, and they not forty yards distant from your firing line, and he "the one solitary horseman between the Second Division of Hancock's Corps and Pickett's Division of Longstreet's Corps." And the Military Order, Loyal Legion, Commandery of Massachusetts, and the History Commission of Wisconsin, as late as the year 1908 in expensive publications confirm the Haskell "Narrative" of his wild "Buffalo Bill" ride between the Union and Confederate lines, and depicting your skill as marksmen, with a horse and officer as the inviting target not forty yards distant—defying the bullets of the most skillful marksmen of the Confederate Army.

Is there a veteran soldier of the Civil War, or even a thoughtful man in the United States, who believes this part of Haskell's Narrative "of riding between the lines the one solitary horseman, and he not forty yards distant from the enemy?" Do Captains Daniel Hall and Charles Hunt, the Loyal Legion of Massachusetts, and Wisconsin History Commission, themselves endorsing it, really believe it?

It was on the third day that "Dick" was plugged with enough of Confederate lead to have warranted Haskell in organizing a Company to mine the lead in "Dick's" dead body. His horse "Billy" was pumped just as full of lead on the second day, as this absurd statement on page 37 attests:

"And my horse can hardly move. What can be the reason? I know that he has been touched by two of their bullets today, but not to wound or lame him to speak of. I foolishly spurred my horse again. No use—he would only walk. I dismounted; I could not lead him along. So, out of temper, I rode him to headquarters, which I reached at last. With a light I found what was the matter with 'Billy.' A bullet had entered his chest just in front of my left leg as I was mounted, and the blood was running down all his side and leg, and the air from his lungs came out of the bullet hole. I rode him at the Second Bull Run, and at the First and Second Fredericksburg, and at Antietam after brave 'Joe' was killed, but I shall never mount him again. 'Billy's' battles are over."

Just one more instance of the scores of the colossal vanity of Haskell. It tells how General Meade turned the command of the Army of the Potomac over to the youthful First Lieutenant of Infantry—Frank Aretas Haskell. It is to be found on pages 69 and 70 of the Haskell "Narrative." The battle had ended, and the Napoleon of Gettysburg, while patting

himself on the back, was planting data in his mind for printing in his “Narrative,” and thus Paul planted, and the Apollos of Massachusetts and Wisconsin watered.

“Would to heaven Generals Hancock and Gibbon could have stood where I did, and have looked upon that field. But they are both severely wounded and have been carried from the field. One person did come, and he was no less than Major-General Meade, who rode up accompanied alone by his son—an escort not large for a commander of such an army. As he arrived near me he asked, ‘How is it going here?’ I answered, ‘I believe, General, the army is repulsed.’ With a touch of incredulity he further asked, ‘What! IS THE ASSAULT ENTIRELY REPULSED?’ I replied, ‘It is, sir.’ And then his right hand moved as if he would have caught off his hat and waved it, but instead he waved his hand and said, ‘Hurrah!’ He asked where Hancock and Gibbon were, but before I had time to answer that I did not know, he resumed, ‘No matter, I will give my orders to You, and YOU will see them executed.’ He then gave directions that the troops should be reformed as soon as practicable, and kept in their places, as the enemy might be mad enough to attack again, adding, ‘IF THE ENEMY DOES ATTACK, CHARGE HIM IN THE FLANKS AND SWEEP HIM FROM THE FIELD—do you understand?’ The General then, a gratified man, galloped in the direction of his headquarters.”

Of course, General Meade rode back to his headquarters a gratified man. Had he not just received the information from First Lieutenant Haskell that the enemy had been “entirely repulsed?” and had not Meade issued an order to this Wellington of Lee’s Waterloo to sweep the enemy from the field, if he were mad enough to renew the attack, by charging him on the flanks? General Meade’s order to Haskell was so sedately humorous as to leave us in doubt as to whether the First Lieutenant and his horse alone were to charge the enemy’s flanks, or for Lieutenant Napoleon Wellington Haskell to order the First, Eleventh and Twelfth Corps to charge his left flank, and the Third, Fifth and Sixth Corps his right flank, while Haskell and Dick swept his centre from the field.

And this is the “narrative” that a Loyal Legion and a History Commission feel honored in publishing. If the object was to prove that they were just as vainglorious as Haskell, has not this fact been fully established by their published books? Vaccinated by the Haskell virus of vanity and venom, the buffoonery of Haskell has been transmitted by a Military Order of the Loyal Legion, and the History Commission of a great State, to their admiring friends and the public. Like Haskell, “A great, magnificent passion came on them that seemingly sublimed every sense and faculty—when, great heavens! their senses mad,” the Battle of Gettysburg, by Frank Aretas Haskell, First Lieutenant, Sixth Wisconsin Infantry, was “published under the auspices of the Commandery of the State of Massachusetts, Military Order of the Loyal Legion of the United States, and the Wisconsin History Commission.”

General Roy Stone, of Pennsylvania, commanded the Second Brigade, Third Division, First Corps, at Gettysburg. Upon receiving serious wounds he was carried from the field, and Colonel Langhorne Wister, of Philadelphia, commanding the 150th Pennsylvania Regiment, succeeded to the command of the Brigade, and the Lieutenant-Colonel took

command of the Regiment, and soon after was shot in the leg, remaining in command until his right arm was shattered. Carried into an adjacent barn, used temporarily as a hospital, the flow of blood was stopped by a tourniquet, and the arm bandaged—occupying about thirty minutes—after which he returned to his regiment and assumed command, maintaining the line held by it until the excruciating pain and faintness from shock and loss of blood compelled him to retire. The next day his arm was amputated at the shoulder.

For that—perhaps—unprecedented instance of heroism at Gettysburg the Lieutenant-Colonel of the 150th Pennsylvania was awarded a Congressional Medal of Honor; he was promoted for bravery on the field of battle, and this is what he, General Henry S. Huidekoper, of Philadelphia, a member of the Loyal Legion, Commandery of Pennsylvania, says of Haskell's book:

“In the first print much of what Haskell said was suppressed, and we cannot but regret that any of it was made public, for, from a historical standpoint, the story is inaccurate and misleading, and from an ethical standpoint it is indecent, venomous, scandalous and vainglorious.”

And this is the “narrative” that the Military Order of the Loyal Legion of Massachusetts, and the History Commission of Wisconsin, have recently published in attractive and costly form, giving the same wide circulation, unmindful of the fact that thereby they are inflicting irreparable injury to both the living and the heroic dead.

THE PHILADELPHIA BRIGADE.

Colonel Chas. H. Banes, late President of the Market Street National Bank, was a typical soldier of the Civil War; he was a leading member of the Baptist Church in Philadelphia, and was as devout as a Christian as he was heroic as a Volunteer Soldier. In 1876 Colonel Banes published an interesting volume, entitled, “History of the Philadelphia Brigade.” No man was as competent as he to write such a history, inasmuch as he had long been the Adjutant of the Brigade and in possession of all its records. In his preface to that book Colonel Banes says:

“The four regiments of the Brigade were composed chiefly of Volunteers from the city of Philadelphia, and for that reason might properly be called the Philadelphia Brigade. It consisted of the 69th, 71st, 72d, and 106th Regiments of Pennsylvania Volunteers. The command had from the first enrollment until the muster out 350 field, staff and line officers, and over 6,000 non-commissioned officers and privates. The officers and men of the regiments were equal in courage, endurance and discipline to the best commands of the army, and their soldierly bearing on the march and in battle helped to make the history of the Army of the Potomac.”

As to the charge of cowardice against a Brigade that lost 3,533 in killed, wounded, deaths from other causes, and missing, made under the auspices of Dartmouth College, and the

Military Order of the Loyal Legion of the United States, Commandery of Massachusetts, is so positive, so indecent, so scandalous, so brutal, and so absolutely false, the Philadelphia Brigade, in formulating a reply to these malicious and infamous violations of facts, has deemed it proper to submit, as briefly as possible, extracts from Colonel Banes' "History of the Philadelphia Brigade," about what the Old Brigade did from the time it received the order to move from Falmouth, Va., until it met and turned backward the charge of Pickett's Division at the "Bloody Angle" of Gettysburg, on the afternoon of July 3, 1863.

BANES VERSUS HASKELL.

That "History of the Philadelphia Brigade," by Colonel Chas. H. Banes, which records with absolute truthfulness the part taken by the Philadelphia Brigade from Ball's Bluff to Appomattox, was written with the calm deliberation and adherence to facts characteristic of the man who stood foremost among his fellow citizens of Pennsylvania for business integrity, Christian rectitude, and American manhood and honor, and sensitive in the highest degree of his honor, and herewith is what that manly man, comrade and companion, Colonel Chas. H. Banes, Adjutant of the Philadelphia Brigade, records in his history regarding the battle at the Bloody Angle of Gettysburg, and the march from Falmouth immediately preceding that great battle:

"On Sunday, June 14th, our Division was ordered to move at very short notice. At about midnight the Second Division, the last of the Army, moved from Falmouth, obstructing the roads behind the column. At noon, June 15th, the command reached Stafford Court House, where it halted two hours; then resuming the march bivouacked at night five miles from Dumfries. The day was very hot, the roads were filled with dust, and the march of 28 miles was so oppressive that a number of the men fell from sunstroke and exhaustion.

"At about two A. M., on the 16th, the Brigade started from Dumfries, where we halted a few hours. After taking up the march through Wolf Run Shoals, Occoquan Creek, we camped for the night on a fine farm belonging to an old bachelor named Steele, who was very anxious that we should raise money to pay for the damage to his crops. He did not succeed, his uninvited guests being ragged and penniless. On the 17th we reached Sangster's Station, Orange and Alexandria Railroad. Here the Corps formed in line of battle, facing towards Bull Run.

"After maneuvering and countermarching the command started on the 20th through Bull Run and Gainesville to Thoroughfare Gap, where we arrived at midnight. The last part of the march was very severe, and in the darkness men frequently stumbled over rocks, and into ditches.

"The Second Corps remained at this place guarding the pass until the morning of June 25th. Two miles below this point there was a less frequented road, but one easy of access, which was effectually blocked up for some time to come by a detachment from the

Brigade, who were furnished with axes, with which trees were felled in large numbers and thrown across the road.

“After leaving Thoroughfare Gap the Division was assailed by a battery while marching through Hay Market. Before this was silenced a few of the command were killed and wounded. Passing through Cub Run the column crossed the Potomac at Edward’s Ferry at eleven o’clock on the night of June 26th.

“The next day the march was continued beyond Barnestown, Maryland; and on the 28th our Corps arrived two miles from Frederick, where the Brigade was ordered to establish a picket covering the right of the Corps near the Monocacy.

“On the day of our arrival at this point General Hooker, at his own request, was relieved from command, and Major-General George G. Meade, commanding the Fifth Corps, was designated as Commander-in-Chief in his stead. There were other changes made of subordinate commanders at the same time. Among these was the assignment of Brigadier-General Alexander S. Webb to command the Second Brigade as successor to Brigadier-General Owen.

“General Webb, although an officer of note in the regular service, was unknown to the majority of the command, but his force of character and personal gallantry soon won the regard of the Brigade to as great an extent as that obtained by any of his predecessors.

“The advance of the Second Corps was begun early on the morning of June 29th, and, with but few halts, it was continued throughout the day. After tramping through the stifling dust under a burning sun, in heavy marching order, a distance of more than 31 miles, Uniontown was reached, where the troops remained during the 30th. On July 1st the advance was again resumed until a point four miles from Gettysburg was reached, where a halt was made.”

Thus it was the Philadelphia Brigade reached Gettysburg, after marching about 170 miles from Falmouth to Gettysburg, in mid-summer, under a blazing sun, with dust ankle-deep, as the rear guard of the Army of the Potomac, obstructing roads while on the march, silencing batteries of the enemy, performing picket duty, and doing the rear-guard work for a great army, and when on the march making from 20 to 30 miles a day—on June 29th marching more than 31 miles—and on July 1st marching from Uniontown, 20 miles distant, to within four miles of Gettysburg. On the morning of July 2d, at early dawn, marched a distance of four miles, placed in position at Cemetery Ridge, and taking part in the second day’s battle, as herewith further described by Colonel Banes:

“On July 2d, at early dawn, the Corps was moved to the front and placed in position along Cemetery Ridge, connecting on its right with the left of Howard’s Corps; while the Third Corps, under Sickles, was ordered to connect on the left and extend to Round Top.

“The Philadelphia Brigade, before taking its place in line, was massed on the edge of a wood, near the Taneytown Road, and a field return was made by the adjutant of each regiment. Out of the entire number present for duty when General Webb assumed

command at Frederick, there were but 13 men absent without leave; and some of these, who had given out on the march, rejoined their comrades before the action.

“By order of General Gibbon, commanding the Division, the Philadelphia Brigade was put in position at six and a half o’clock A. M. on the 2d, on Granite Ridge, on the right of the Division, its right resting on Cushing’s Battery A, Fourth United States Artillery, and its left on Battery B, First Rhode Island Artillery, Lieutenant Brown commanding. The 69th Regiment was placed behind a fence, a little in advance of the ridge, the remaining three regiments of the Brigade under cover of the hill in the rear.

“Immediately after assuming this position, a detail, ordered from each regiment, was advanced as skirmishers beyond the Emmetsburg Road and parallel with the Confederate line of battle on Seminary Ridge. This disposition was scarcely completed before the enemy opened with sharpshooters and artillery.

“A few hundred yards in front of our line of battle and towards the left, a farm house and buildings were located. To prevent these affording cover to the enemy, they were occupied by the Brigade pioneers, with orders to destroy them upon a signal from General Webb. During the fight of Sickles the Brigade skirmishers were engaged for an hour with those of the enemy, both parties suffering losses, but neither giving ground. This contest was in full view of the entire Corps, and the manly bearing of their comrades was a matter of pride to the men of the Philadelphia Brigade. That portion of the field lying between Granite and Seminary Ridge being an open plain without trees or shelter, the contests of our skirmishers were literally a series of duels fought with rifles at an easy range.

““The enemy made the assault on the 2d at about six and a half P. M. Their line of battle advanced beyond one gun of Brown’s Battery, receiving at that point the fire of the 69th, of the 71st, advanced to the support of the 69th, of the 72d and of the 106th, which had previously been moved to the left by command of General Hancock. Colonel Baxter at this time was wounded. The enemy manœuvred and fell back, pursued by the 106th, 72d and part of the 71st. The 72d and 106th followed them to the Emmetsburg Road, capturing and sending to the rear about 250 prisoners, among whom were one colonel, five captains and fifteen lieutenants.””

“The assault, thus officially reported by Webb, was executed with much celerity, and when the column of the enemy burst forth from the woods on Seminary Ridge, it seemed but a few moments before the Emmetsburg Road was crossed, and our skirmishers driven like leaves before the wind. As the Confederates advanced, Brown’s Battery, with the exception of one gun, was withdrawn to the rear of the 69th. Over this piece there was a fierce struggle, but the fire of the Brigade was terribly severe, causing the enemy to hesitate and then fall back. Those of the Confederates in the lead threw down their guns and cried out with an oath: ‘Get us out of this; it is too hot here.’

“And now a countercharge was made by the Philadelphia Brigade, along with those of other Brigades; the assaulting column was rolled back almost as quickly as it had

advanced. The skirmish line was reformed on its old connection, and shortly after, night coming on, the fight on our portion of the line was over for the 2d of July.

“The pioneers in their exposed position were made prisoners by the enemy, and the guard left by the captors remained at the farm house with their charge, intending to move to the rear as soon as the heavy firing was over. This decision was fortunate for our detail, but unfortunate for the enemy, as the advance of Webb’s regiments swept by the improvised guard house and changed the relation of its occupants.

“The 106th Regiment was ordered to report to General Howard, who placed it on the right of the Baltimore Pike, near Rickett’s Battery, where it remained until the close of the battle. This regiment was highly complimented by General Howard.

“On the morning of July 3d the 69th Regiment occupied the same line at the fence in front of the clump of trees on the ridge that it held the day before, while the 71st was deployed and connected with its right. One wing of the 71st was stationed at the fence, while the other was behind a stone wall to the right and rear. The 72d was held in reserve, forming a second line to the left of Brown’s Battery, and in the rear of Colonel Hall’s Third Brigade.

“After the contest at Culp’s Hill there was a momentary pause in the operations of both armies. This unusual calm was only broken by an occasional gun, or the discharge of a sharpshooter’s rifle. About one o’clock, when the men were wondering what the next movement would be in this great battle, a single Whitworth gun was fired from the extreme left of Seminary Ridge, a distance of three miles. The bolt just reached the right of our Brigade. Then at intervals along the entire line solitary shots were fired, as if intended for signal guns of preparation. These were quickly followed by others, and in a few moments there burst forth from the whole Confederate line a most terrific fire of artillery. One hundred and twenty guns concentrated their fire on that portion of Meade’s position held by the Second Division, Second Corps. Shell, round shot, Whitworth bolts, and spherical case were flying over and exploding about us at the same time. Almost every second ten of these missiles were in the air; each, as it went speeding on its message of death, indicating its form by a peculiar sound. The shrieking of shells, or the heavy thud of round shot, were easily distinguished from the rotary whizzing of the Whitworth bolt.

“When these agents of destruction commenced their horrid work, no portion of the line, from the front to a point far in the rear of the Taneytown Road, afforded any protection against their fury. Men who had been struck while serving the guns and were limping towards the hospital, were frequently wounded again before they had gone a hundred yards.

“In spite of the ghastly forms of mangled men and horses, and in spite of the dismantled guns, exploding limbers, and other scenes of horror, produced by Lee’s attack, the guns of Meade roared back their defiance; while the infantry, powerless for the moment, rested on their arms awaiting the bayonet charge they knew was sure to follow.

“Webb reports: ‘By a quarter to three o’clock the enemy had silenced the Rhode Island Battery, all the guns but one of Cushing’s Battery, and had plainly shown, by his concentration of fire on this and the Third Brigade, that an important assault was to be expected. I had sent, at two P. M., the Adjutant-General of the Brigade for two batteries to replace Cushing’s and Brown’s. Just before the assault, Captain Wheeler’s First New York Artillery had got into position on the left in the place occupied by the Rhode Island Battery, which had retired with the loss of all its officers but one.’

“When the New York Battery arrived and went into action, Lieutenant Cushing had but one of his guns left, and it was served by men of the 71st Regiment. The Lieutenant had been struck by a fragment of shell, but stood by his piece as calmly as if on parade, and as the Confederate infantry commenced to emerge from the woods opposite, Cushing quietly said, ‘Webb, I will give them one shot more; good-bye.’ The gun was loaded by the California men, and run down to the fence near the 69th, and at the moment of the last discharge, just as the enemy reached the line, the brave Cushing fell mortally wounded.

“At three o’clock the enemy’s line of battle left the woods in our front, moved in perfect order across the Emmettsburg Road, formed in the hollow of our immediate front several lines of battle under a fire of spherical case-shot from Wheeler’s Battery and Cushing’s gun, and advanced for the assault.

“The Union batteries increased their fire as rapidly as possible, but this did not for a moment delay the determined advance. The rude gaps torn by the shells and case-shot were closed as quickly as they were made. As new batteries opened, the additional fire created no confusion in the ranks of the enemy; its only apparent effect was to mark the pathway over the mile of advance with the dead and dying. None who saw this magnificent charge of Pickett’s column, composed of thousands of brave men, could refrain from admiring its grandeur. As they approached the rail fence their formation was irregular, and near the front and centre were crowded together the regimental colors of the entire division; the scene strangely illustrated the divine words, ‘Terrible as an army with banners.’

“Now our men close up their ranks and await the struggle. The Seventy-second, by direction of Webb, is double-quickened from its position on the left and fills the gap on the ridge where Cushing’s Battery had been in action. Just at this moment Pickett’s men reach the line occupied by the Sixty-ninth and the left companies of the Seventy-first. General Armistead, commanding the leading brigade, composed principally of Virginians, in advance of his men, swinging his hat on his sword, cries out, ‘Boys, give them the cold steel!’ Just then the white trefoil on the caps of our men is recognized, and Armistead’s men exclaim, ‘The Army of the Potomac! Do they call these militia?’

“The final effort for success now commences. The advance companies of the Seventy-first are literally crowded out of their places by the enemy, and, with one company of the Sixty-ninth, they form with the remainder of Colonel Smith’s command at the stone fence. At the same instant Colonel Hall’s Third Brigade and the regiments of the First under Devereaux and other officers, as if by instinct, rush to Webb’s assistance, while

Colonel Stannard moves two regiments of the Vermont Brigade to strike the attacking column in the flank.

“And now is the moment when the battle rages most furiously. Armistead, with a hundred and fifty of his Virginians, is inside our lines; only a few paces from our Brigade Commander, they look each other in the face. The artillery of the enemy ceases to fire, and the gunners of their batteries are plainly seen standing on their caissons to view the result, hoping for success, while Pettigrew’s Division, failing to support Pickett, halts as if terrified at the scene. This is the soldiers’ part of the fight; tactics and alignments are thrown to one side. No effort is made to preserve a formation. Union men are intermingled with the enemy, and in some cases surrounded by them, but refusing to surrender. Rifles, bayonets and clubbed muskets are freely used, and men on both sides rapidly fall.

“This struggle lasts but a few moments, when the enemy in the front throw down their arms, and rushing through the line of the Seventy-second, hasten to the rear as prisoners without a guard, while others of the column who might have escaped, unwilling to risk a retreat over the path by which they came, surrendered. The battle is over, the last attack of Lee at Gettysburg is repulsed, and the highest wave of the Rebellion has reached its farthest limit, ever after to recede.

“General Armistead, who was in the Confederate front, fell mortally wounded, close to the colors of the Seventy-second. One of the men of that regiment, who was near him, asked permission of the writer (Col. Chas. H. Banes, Adjutant Philadelphia Brigade), to carry him out of the battle, saying, ‘He has called for help as THE SON OF A WIDOW, an order was given to take him to an ambulance, and when his revolver was removed from his belt, it was seen that he had obeyed his own command, ‘to give them the cold steel,’ as no shot had been fired from it.

“At the close of Gen. Webb’s official report he states, ‘The Brigade captured nearly one thousand prisoners and six battle flags, and picked up fourteen hundred stand of arms and nine hundred sets of accoutrements. The loss was forty-three officers and four hundred and fifty-two men, and only forty-seven were missing. The conduct of this Brigade was most satisfactory.’”

Compare the calm, temperate, lucid, truthful and dignified statement of Colonel Banes, who, as the Adjutant of the Philadelphia (Webb’s) Brigade, was more familiar with its every movement than any officer or private soldier could possibly be; a statement prepared with deliberation by a man of mature years, and ripened judgment, with that of the raving, distracted, ridiculous utterances of the youthful Lieut. Haskell, in his book said to have been hastily written within two weeks after the battle, written between his hours of duty, while on the march from Gettysburg back to Harper’s Ferry, written by him while not yet fully recovered from the delirium of excitement that overcame him in the exalted

position he claims to have assumed, that of Supersedeas Commander of the Army of the Potomac to annihilate the Confederate Army, in the event of its renewing the attack.

It was the author Haskell who asked this question of Lieut. Haskell:

“Great heavens! were my senses mad?—the larger portion of Webb’s Brigade—my God! it is true, was breaking from the cover of the works, without order or reason, with no hand uplifted to check them, was falling back a fear-stricken flock of confusion. A GREAT, MAGNIFICENT PASSION OVERCAME ME as I met the tide of these rabbits,” and a lot more of such incoherent, disconnected trash, from the young Lieutenant so OVERCOME WITH A MAGNIFICENT PASSION that the aberration of mind which followed while writing that narrative was inevitable.

Col. Banes says, “This struggle lasted but a few moments, when the enemy in front threw down their arms, and, rushing through the lines of the Seventy-second hastened to the rear as prisoners without a guard.”

It was these men of Pickett’s Division hastening to the rear whom Haskell met, if ever he met any one fleeing to the rear on that occasion; but “Great heavens! his senses were mad.” A “Magnificent Passion” overcame him. He was in a delirium of vainglory, and he mistook the defeated Veterans of Pickett’s Division, seeking shelter from impending death, for the victorious Veterans of the Philadelphia Brigade, and the Military Order, Loyal Legion, Commandery of Massachusetts, and the History Commission of Wisconsin, also apparently overcome with a “Magnificent Passion” for book publishing, reprinted his “Narrative” to the world, as their adopted waif and heir.

It has been asked, what could have been Haskell’s object in so perverting the facts of history relative to the Battle of Gettysburg? Gen. Henry S. Hindekoper, of Philadelphia, who won high renown in the battle, aptly answers the question in the statement made by him, wherein he said of Haskell’s “Narrative,” that “from a historical standpoint it is inaccurate and misleading, and from an ethical standpoint it is indecent, venomous, scandalous and VAINGLORIOUS.”

After describing the first day’s fight as minutely as though he had observed it all from the cupola of the Seminary Building on Seminary Ridge, Haskell thus seeks to acquit himself from all misstatements by saying: “Of the events of the first day of July I do not speak from personal knowledge.”

At two o’clock in the afternoon of July 1st, Haskell was at Taneytown, 13 miles distant from Gettysburg, and between 8 and 9 o’clock in the evening the Second Corps was halted four miles south of Gettysburg, where it, and Lieut. Haskell, biouvacked for the

night; therefore—except detracting from officers and men who rendered heroic service—no glory came to Haskell on the first day. He “did not see what he thought he saw.”

At early dawn on July 2d Hancock’s Corps was moved forward about four miles, and at 6.30 A. M. was placed in position on Cemetery Ridge. The Third Division (Hayes), on the right, connecting with the left of Howard’s Eleventh Corps; the First Division (Caldwell’s), on the left, connecting with the right of Sickles, Third Corps, and the Second Division (Gibbon), in the centre, and Haskell started in early on the second day to catch fame, and thus, according to his own “Narrative,” he succeeded:

“A bullet entered the chest of my horse, ‘Billy,’ just in front of my left leg; a kick from a hitched horse in the dark that would likely have broken my ankle if it had not been for a very thick boot, but which did break my temper, and a bullet from a sharp shooter that hissed by my cheek so close that I felt the movement of the air distinctly.”

And thus the “Narrative” recites as to the third and last day of the battle:

“I had been struck upon the thigh by a bullet which I think must have glanced and partially spent its force upon my saddle. It had pierced the thick cloth of my trousers, and two thicknesses of underclothing, but had not broken the skin, leaving me with an enormous bruise, that for a time benumbed the entire leg. At the time of receiving it, I heard the thump, and noticed it, and the hole in the cloth into which I thrust my finger, and I experienced a feeling of relief when I found that my leg was not pierced.”

We shudder when we think what might have happened to that leg, if the bullet, when it saw Haskell, had not so kindly glanced and spent its force on his saddle before piercing the thick cloth of his breeches, and the two thicknesses of his underclothing.

The second and third days brought scant renown to such an ambitious officer as First Lieut. Haskell, but immortal fame is very chary with her favors. She tries a man long, and she tries him hard, before wreathing his brow with the laurel of victory, and fitting him for a niche in the Temple of Fame. Haskell realized all this at the close of the battle on this afternoon of July third, and he evidently concluded to create a niche for himself in the holy of holies by a page or two of romance in his “Narrative,” and so he planned it all out.

Haskell knew—none better than he—that the Philadelphia Brigade met and repulsed the brunt of the charge of Pickett’s Division, but he would immortalize himself as a hero by recording in his “Narrative,” that the Brigade broke from the “Bloody Angle” without orders or reason, with no uplifted hand of Webb, or Banes, or Dennis O’Kane, or Martin Tschudy, or R. Penn Smith, or Theodore Hesser to check them; that he, Haskell, met them, “a tide of rabbits,” and ordered them to halt, to about face, and to fire, and hearing his voice they obeyed his command, and he led them back to glorious victory, and that he—as the one solitary horseman between the lines, only 40 yards from the enemy—repulsed Longstreet’s Corps, and thereby, therein and thereon ended the great conflict at Gettysburg.

It was such a ridiculous page of fiction that if Haskell had survived the vicissitudes of war, he would have eliminated it, and if he died before the close of the Civil War—as he did—he would trust to luck; he trusted aright, for a Loyal Legion concluded to continue the fiction, thereby placing its laurel on Haskell’s brow, crowning HIM the Hero of Gettysburg; and a State History Commission concluded to fill a niche in the Temple of the Immortals with the name and fame of First Lieutenant Frank Aretas Haskell, but not until fifty years after the fiction had been written, when few were left to refute that romance of the most vainglorious soldier of the Civil War.

AN OFFICIAL STATEMENT OF THE LOSS OF THE PHILADELPHIA BRIGADE.

The total number of officers and men present for duty of the Philadelphia Brigade, at the Battle of Gettysburg, was 1,573, and the total loss was 491, given in detail, as to regiments in the annexed tables:

NUMBER PRESENT FOR DUTY

REGIMENTS	OFFICERS	MEN	TOTAL
General Staff	4	—	4
69th	22	312	344
71st	27	366	393
72nd	26	447	473
106th	30	313	343
Brigade Band	—	16	16
Totals	119	1454	1573

LOSS OF PHILADELPHIA BRIGADE AND SECOND CORPS AT GETTYSBURG.

No. of Regt.	No. of Killed		No. of Wounded		Missing		Totals
	Officers	Men	Officers	Men	Officers	Men	
69th	4	36	8	72	2	15	137
71st	2	19	3	55	3	16	98
72nd	2	42	7	139	—	2	192
106th	1	8	9	45	—	1	64
Totals	9	105	27	211	5	34	491

TOTAL LOSS SECOND CORPS.

No. of Killed	No. of Wounded	Captured or Missing	Total
---------------	----------------	---------------------	-------

Officers	Men	Officers	Men	Officers	Men	
66	731	270	2923	13	365	4369

The following table, furnished by our beloved Comrade, Sylvester Byrne, was the last letter the Philadelphia Brigade Association ever received from that noble soul—that Comrade who loved his Regiment and Brigade with ardent and unfaltering affection. To the very last he was faithful to and watchful of his Command. The statement was furnished for the purpose of correcting some errors relative to the actual losses of the Philadelphia Brigade. The table is printed just as it was given by Comrade Byrne, and is regarded as his sacred contribution to the Brigade’s reply to Haskell’s charge of cowardice:

TABLE SHOWING THE LOSSES OF THE PHILADELPHIA BRIGADE FROM 1861
TO 1865.

Regt.	Killed	Wounded	Missing	Died of Disease	Died of Other Causes	Total
69th	178	346	185	91	15	815
71st	140	396	330	91	6	963
72nd	195	558	165	60	10	988
106th	99	416	157	81	14	767
Totals	612	1716	837	323	45	3533

The total loss in killed, wounded and missing of the Philadelphia Brigade at Gettysburg was over 32 per cent., about one soldier slain to every three engaged in the battle. Call you this “running like rabbits?”

The total loss of the Philadelphia Brigade during the Civil War was 3,533, of which number 545 were killed, wounded and missing at Antietam, the remaining loss of nearly three thousand was sustained in the 45 engagements in which the Brigade took part, and yet with the evidence of this loss, furnished by the United States Government and easily accessible to all, and on file in the library of the Loyal Legion of Massachusetts, that Order appears to stand sponsor for a “Narrative” which falsely proclaimed to the world that the brave men of the Philadelphia Brigade “ran like rabbits” from Pickett’s Division at Gettysburg.

What more need be said to convince this Military Order of the Loyal Legion that from the beginning to the end, the Philadelphia Brigade was just as loyal, just as brave, just as heroic, as they, our comrades, and with this statement of facts the Association of Survivors of the Philadelphia Brigade calls upon the Military Order of the Loyal Legion,

Commandery of Massachusetts, and the History Commission of Wisconsin, to retract the statement made in the volumes published by them during the year 1908, as to cowardice.

In meeting and repulsing the charge of Pickett's Division at the Bloody Angle of Gettysburg, the High Water Mark of the Civil War, the Philadelphia Brigade gained imperishable fame that will live in history as long as our country will exist as a nation, and that renown is so irrevocably fixed in the annals of the War that it can never be impaired while time itself shall last.

Since the foregoing reply was formulated, to the charge of cowardice made under the auspices of the Loyal Legion of Massachusetts, the Philadelphia Brigade Association has received a book of 185 pages, entitled "The Battle of Gettysburg, by Frank Aretas Haskell, Wisconsin History Commission, Reprint No. 1," an edition of 2,500 copies, printed under authority of the State of Wisconsin. In printing this book these words appear in the preface:

"The Wisconsin History Commission has, in accordance with its fixed policy, reverted to the original edition, which is here presented entire, exactly as first printed."

And this is what that "History Commission" records on pages 9 and 10 regarding the Eleventh Corps:

"Between three and four o'clock in the afternoon the enemy, now in overwhelming force, resumed the battle with spirit. The portion of the Eleventh Corps making but feeble opposition to the advancing enemy, soon began to fall back. Back in disorganized masses they fled into the town, hotly pursued, and in lanes, in barns, in yards and cellars, throwing away their arms, they sought to hide like rabbits, and were captured, unresisting, by hundreds."

The Loyal Legion of Massachusetts hadn't the courage to print that paragraph in their book.

These regiments formed the Eleventh Corps at Gettysburg: 17th Conn., 82d Ill., 33d Mass., 41st, 45th, 54th, 58th, 68th, 75th, 119th, 134th, 136th, 154th and 157th New York; 27th, 73d, 74th and 153d Penna.; 25th, 55th, 61st, 73d, 75th, 82d and 107th Ohio, and 26th Wisconsin. How do the Survivors of these Regiments regard the statement of the History Commission of Wisconsin, that "they sought to hide like rabbits?" and that the loss usually sustained by the Eleventh Corps was in prisoners?

And this is how the great State of Wisconsin, through its History Commission, maligns General Sickles and President Lincoln, who put upon General Sickles' shoulders the stars of a Major-General. (Pages 40 and 41.) The Loyal Legion of Massachusetts eliminated the slander against Gen. Sickles and President Lincoln.

"General Sickles commenced to advance his whole corps, from the general line, straight to the front, with a view to occupy the second ridge, along and near the road. What his purpose could have been is past conjecture. It was not ordered by General Meade, as I

heard him say, and he disapproved as soon as it was made known to him. Generals Hancock and Gibbon, as they saw the move in progress, criticised its propriety sharply, as I know, and foretold quite accurately what would be the result. I suppose the truth probably is that General Sickles supposed he was doing for the best; but he was neither born nor bred a soldier. But one can scarcely tell what may have been the motives of such a man, a politician, and some other things, exclusive of the BARTON KEY affair, a man after show and notoriety, and newspaper fame, and the adulation of the mob, there is a grave responsibility on those in whose hands are the lives of ten thousand men; AND ON THOSE WHO PUT STARS ON MEN'S SHOULDERS, TOO! Bah! I kindle when I see some things I have to see.

“It is understood in the Army that the President thanked the slayer of Barton Key for SAVING THE DAY at Gettysburg. Does the country know any better than the President that Meade, Hancock and Gibbon were entitled to some little share of such credit?”

It is inconceivable that the great State of Wisconsin would in any way lend herself to the dissemination of what is not only untrustworthy, but absolutely scandalous, malevolent and false information, except it was done in ignorance of facts. It is still more inconceivable that the Loyal Legion of Massachusetts, soldiers themselves, would act as sponsors or in any way help, aid or assist in depriving fellow soldiers of the honors fairly and bravely won in a battle where their loss was 491 of a total of less than 1,500 men, except they had given no heed to the statements before publication.

We believe that the State of Wisconsin and the Loyal Legion of Massachusetts can do no less as American citizens and soldiers than to promptly disclaim all responsibility for the statements set forth in Lieut. Haskell's book. For however good Haskell's record as a soldier is, yet the fact must clearly appear to every intelligent mind that a man who would speak falsely of his superior officers and even go so far—at least in one case (Sickles)—as to bring to life out of the long dead past, a sad, sad epoch, which was no fault of his—displays in such writing a spirit unworthy of any American; and his self laudation of what he did—would cause anyone who was ever on a field of battle to use one of Haskell's expressions, “Bah.”

A refusal to make this public disclaimer we feel would place both the State of Wisconsin and Loyal Legion of Massachusetts in a position which, to say it very mildly, would be the reverse of creditable, and put them in the attitude of sharing the ridicule and contempt which the narrative of Lieutenant Haskell deserves.

NOTES, CORRESPONDENCE AND REMARKS.

NOTE NO. 1.

This letter from General Alex. S. Webb is made a part of this paper:

NEW YORK MONUMENTS COMMISSION
BATTLE FIELDS OF GETTYSBURG AND
CHATANOOGA
RIVERDALE-ON-HUDSON
NEW YORK.

September 7, 1909.

My dear Frazier:

I could not find your address, but I had Dampman's, and wrote to him to try and obtain action on Haskell's book which is now circulated by the thousands to take from our Brigade and its Commander all the glory and reputation we acquired at the Bloody Angle of Gettysburg.

So make it certain that our answer to the Massachusetts Commandery be strong and clear. What Haskell wrote he wrote in ignorance. He paraded with the stragglers and prisoners behind a fighting Brigade and thought he was leading a Division.

Now, Frazier, let this denial of Haskell's claim be strong and yet courteous. He is dead. Gibbon is dead. Hancock dead. What a time to proclaim this falsehood.

Sincerely yours,
(Signed) ALEX. S. WEBB,
Brevet Maj. General, U. S. A.

NOTE NO. 2.

WHAT LINCOLN SAID.

It was Abraham Lincoln who said at the dedication of the National Cemetery at Gettysburg:

"But in a larger sense, we cannot dedicate, we cannot consecrate, we cannot hallow this ground. The brave men, living and dead, who struggled here, have consecrated it far above our power to add or detract. The world will little note nor long remember what we say here, but it can never forget what they did here."

And yet the Military Order of the Loyal Legion, Commandery of Massachusetts, and the Wisconsin History Commission, in so far as they authorized, or are responsible for the

publication of the Haskell "Narrative" of the Battle of Gettysburg, are surely, surely doing what they can to detract from what the living and the dead did there.

NOTE NO. 3.

FOR CAREFUL CONSIDERATION.

A typewritten copy of this reply of the Philadelphia Brigade Association, before being placed in the hands of the printer, was sent to the Military Order of the Loyal Legion, Commandery of Massachusetts; to the Wisconsin History Commission, and to the Governor of Wisconsin, asking if they had any explanation to make as to the statements contained in Haskell's "Narrative," advising them that we would gladly give it in our printed book.

As yet no reply has been received from the Loyal Legion of Massachusetts, and for this grave discourtesy we are at a loss to account, unless it be that after consideration the facts submitted did not warrant them in defending the position in which they were placed, and to acknowledge themselves in error would, to some extent, at least, stultify themselves.

The Governor of Wisconsin, who is an ex-officio member of the Wisconsin History Commission, writes under date of February 24, 1910, scarcely referring at all to the matter under consideration, i. e., the conduct of the Philadelphia Brigade in the Battle of Gettysburg. He does, however, say that the purpose of the Commission is to publish such material as from considerations of rarity or general excellence it is deemed desirable to disseminate. Haskell's book certainly comes under one of these classes. We do not believe that among any writings of either Union men or Confederates in all the United States, such a rare book as Haskell's can be found. The Governor of Wisconsin says that Haskell in his story to his brother puts down in his letter "what he saw, or thought he saw."

It would seem that comment on this is useless. That history should be what the writer "saw, OR THOUGHT HE SAW," is at least novel.

Chas. E. Estabrook, a Comrade of the Grand Army, and its representative on the Wisconsin History Commission, and its chairman, under date of February 17, 1910, while writing a somewhat lengthy letter, neglects, also, to write of the matter under consideration, but says, among other things:

"The subject of the criticism of the Eleventh Corps, by Haskell, in his account of Gettysburg, was considered by me, and I contemplated writing notes, OR GIVING THE LATER, AND WHAT I THINK THE MORE ACCURATE VIEW. I, however, concluded, in view of the rule which we adopted, to have the other and later account of the Battle of Gettysburg prepared by a Wisconsin man, from the Wisconsin point of view, and some months ago asked a staff officer, who served in that Corps, to write an account of the Eleventh Corps at Gettysburg, which he consented to do. This will be published as soon as practicable after the same is delivered to the Commission."

It would seem from this that Chairman Estabrook, Past Department Commander, of Wisconsin, Grand Army of the Republic, does not believe the statement made by Haskell in his "Narrative," and that it is necessary to have another book published to state truthfully what the Eleventh Corps did. It would seem that it is also needless to make any comment on the position taken by Comrade Estabrook, Chairman of the Wisconsin History Commission. It is to be hoped that this staff officer's book will be written from the stand-point of what he saw, and not from what he thought he saw.

THE HISTORY COMMISSION'S VIEW.

Reuben G. Thwaites, Secretary and Editor of the Wisconsin History Commission, speaking for the Commission, writes thus:

"OPINIONS, OR ERRORS OF FACT, on the part of the respective authors represented, both in original narratives and in reprints issued by the Commission HAVE NOT, NOR WILL THEY BE MODIFIED BY THE LATTER. For all statements of whatever character, the author alone is responsible.

"Could any plainer statement than the foregoing be phrased in the English language, to indicate that this Commission certainly does not endorse whatever criticisms may have contemporaneously been offered by Lieutenant Haskell?"

As the question has been asked us we reply: As Haskell has been dead for more than 45 years, and the foul slanders were made public by the Wisconsin History Commission in November, 1908, defaming President Lincoln, Generals Sickles, Howard, Doubleday, Barlow, Schurz, Geary, Webb, Banes and other officers, and thousands of brave soldiers, it certainly does look to the Comrades of the Philadelphia Brigade as though the Wisconsin History fully endorsed everything that Haskell wrote. Just how the Corps, Brigade and Regimental Associations, Grand Army Posts, Loyal Legion Commanderies, public libraries, the newspaper press, and others to whom this "Reply" will be sent will regard the actions of the Wisconsin Commission and the Massachusetts Loyal Legion has yet to be determined.

Writing further, Secretary and Editor Thwaites says:

"If Haskell's account was worth reprinting at all (and we thought it well worth doing), the only course open to us, as historians, was to present it just as it was originally issued, and not in the emasculated form adopted by the Dartmouth editor, and the Massachusetts Loyal Legion; changes of such character in a contemporary document are unwarranted, and utterly ruin it as historical material."

As this seems to be a question of ethics between history makers, it is up to the Dartmouth editor, and the Massachusetts Loyal Legion to satisfy the Wisconsin Commission why the unwarranted emasculation was made of the Haskell "Narrative."

The Wisconsin History Commission concludes its letter of explanation and excuse to the Philadelphia Brigade Association in these words:

“In reprinting various other rare Wisconsin Civil War material, as we intend to do, it may happen that the original authors thus selected for treatment have criticised certain commands; it certainly would not tend to smooth the path of the Commission if each such command was thereupon to pass condemnatory resolutions. WE shall certainly hope to be spared such treatment.”

In reprinting the Haskell “Narrative” the Wisconsin History Commission invited the criticism it justly deserves, and must expect to receive; and in their reprints in the future, if it permits their authors to criticise other commands—as they intend to do—They cannot escape the condemnatory resolutions they hope to be spared.

The Man of Nazareth said: Give, and it shall be given unto you; good measure, pressed down, and running over, shall men give into your bosom. For with the same measure that ye mete, withal it shall be measured to you again.

LETTER FROM MAJOR ROBERTS.

The following letter, under date of May 15, 1877, was written by Major Samuel Roberts, of the 72d Regiment, Pa. Vols., to a Comrade and friend:

“Webb’s Brigade was composed of the 69th, 71st, 72d and 106th Pennsylvania Regiments; the 106th Regiment had been sent to the right to reinforce Gen. Howard, leaving the other three Regiments of the Brigade to receive the shock of Pickett’s advance.

“The Brigade was not entrenched, nor driven back and rallied by Webb. The left wing of the 71st Regiment fell back a few yards; the 69th maintained their position, as did the right wing of the 71st. The 72d, which held a position to the left, and a short distance to the rear of the Brigade, moved by the right flank about one hundred yards, and came to a front about sixty yards in front of Armistead’s Confederate Brigade. Armistead fell only a few yards in front of the 72d Regiment.

“With the exception of a slight change of position of the left wing of the 71st Regiment, the Brigade not only held its position, but advanced and captured several colors, and the prisoners taken exceeded in number what was left of the Brigade, which lost nearly fifty per cent. in killed and wounded—the killed and wounded of the 72d was over fifty per cent.

“Cushing’s Battery, which was attached to the Brigade, was served until men were not left sufficient to work the guns. Cushing obtained volunteers from the Brigade, who served the guns until Cushing was killed.

“Webb’s Brigade, called the Philadelphia Brigade, was originally commanded by Col. E. D. Baker, who was killed at Ball’s Bluff. It was the Second Brigade, Second Division, Second Corps, Army of the Potomac, and forms the prominent feature in Rothermel’s painting of the Battle of Gettysburg.”

NOTE NO. 5.

GETTYSBURG BATTLE FIELD DISPATCHES.

From official dispatches sent from Headquarters, Army of the Potomac, to the War Department, during the progress of the third day’s fighting, which were given out to the Associated Press about midnight, being held back until assured that the Union Army was victorious.

“Gettysburg, July 3d, 3 P. M.—A great attack is now being made on our left center by a powerful column of Rebels. We can see them advancing in hosts. Their lines are half a mile in length. They have to march a mile before they can strike a line. All of our artillery has now opened on them and we can see them falling by hundreds. In a few minutes they will strike our line, and the fight will be at close quarters.”

“Gettysburg, July 3d, 4.30 P. M.—We have won a great victory. The fight is over and the Rebel lines hurled back in wild disorder. Longstreet’s whole Corps seems to have been swept away, from our fire. The field is covered with Rebel dead. Wild cheers ring out from every part of our lines. Thousands of Rebel prisoners are being brought in. Sheaves of battle flags and thousands of small arms are being gathered in by our men. The rejoicing among our men is indescribable.”

“Gettysburg, July 3d, 5 P. M.—Our victory is more complete than we could dare hope for. An immense column of the enemy, at least 20,000 strong, attacked our left center and were utterly destroyed by our fire. The column consisted of Longstreet’s Corps, and but few of them are left. Nearly all were either killed, wounded, or are now prisoners in our hands. I hear that Hancock, Gibbon and Webb are severely wounded. The Philadelphia Brigade is almost destroyed. They met the most violent rush of the enemy and lost terribly. Col. O’Kane, of the 69th, is killed, and there is hardly a field officer left in the Brigade.”

“Gettysburg, July 3d, 10 P. M.—Our victory grows more complete as we get time to realize its magnitude. It looks as though nearly all of Longstreet’s Corps had been destroyed. The field in front of the Second Corps, where the brunt of the attack fell, is covered with Rebel dead. In front of the Philadelphia Brigade they lie in great piles. Hundreds of Rebel officers are among the fallen. Gen. Armistead, of Pickett’s Division, fell within our lines. He was shot through the body and is now dying. The Rebel Generals Garnet and Kemper, fell in front of the 69th and 71st Pennsylvania Volunteers. All the field officers of the former Regiment are killed. The slaughter on both sides has indeed

been frightful. Our men are busy gathering in the wounded, many of whom must die during the night for want of proper attention.”

NOTE NO. 6.

LETTER FROM AN INTIMATE FRIEND OF LIEUTENANT HASKELL.

Philadelphia, Pa., Feb. 19, 1910.

“I am in receipt of your favor and note what you say about the extract from the book published by the Wisconsin History Commission relative to the description of the Battle of Gettysburg, by Col. Haskell. It confirms what I stated in my letter to the “Public Ledger” in September last. My daughter, who resides in Milwaukee, has sent me a copy of the book that you mention. I knew Col. Haskell intimately and was confident from the intimation that I possessed that had Col. Haskell lived to see the end of the Civil War he would have modified his description of the battle, as compared to that shown in the publication made by the Loyal Legion of Massachusetts.

Yours very truly,
W. YATES SELLECK.”

Mr. Selleck was the military agent at Washington for the State of Wisconsin. The remains of Col. Haskell were forwarded to Mr. Selleck, at Washington, D. C., who sent them by express, on June 7, 1864, to Haskell’s mother, at Portage City, Wisconsin. In Mr. Selleck’s letter to the “Public Ledger” of Philadelphia, under date of September 21, 1909, he said: “I was intimately acquainted with Haskell and had several conversations with him after the Battle of Gettysburg in regard to that battle, and I have good reason for stating that had Haskell lived until the close of the War the criticisms contained in his diary would not have been made public.”

NOTE NO. 7.

THE CONCLUDING NOTE.

What amusing history makers the Companions of the Loyal Legion of Massachusetts and the Comrades of the Wisconsin History Commission are. The State of Wisconsin enacted a law creating a History Commission, and straightway it begins printing very costly books, which they claim to be “histories of great battles of the Civil War,” one of which “histories” the Governor of Wisconsin sententiously says: “Is what the author saw, OR THOUGHT HE SAW”; and because of its inaccuracy the chairman of that History Commission contemplated correcting by himself, “writing notes giving the more accurate view,” but instead engaged a staff officer, who really saw what he thought he saw, to write a book correcting the inaccuracies that Chairman and Comrade Estabrook himself contemplated doing; and in the meantime the Secretary and Editor of the Commission

“intends reprinting other rare Wisconsin Civil War material,” regardless of the supremely ridiculous opinions or errors of facts of the authors, thereby continuing to hold the State of Wisconsin responsible for the ridicule and expense that attach to such so-called histories, one of which a distinguished officer of the Civil War pithily characterizes as “inaccurate, misleading, indecent, venomous, scandalous and vainglorious.”

CAPT. EDWARD THOMPSON, 69th.
CAPT. JOHN D. ROGERS, 71st.
JOHN W. DAMPMAN, 71st.
THOS. H. EATON, 72d.
FRANK WEIBLE, 72d.
WM. H. NEILER, 106th.
JAMES THOMPSON, 106th.
Committee on Publication.

Transcriber's Note: Other than the corrections noted by hover information, inconsistencies in spelling and hyphenation have been retained from the original.

*** END OF THE PROJECT GUTENBERG EBOOK REPLY OF THE
PHILADELPHIA BRIGADE ASSOCIATION TO THE FOOLISH AND
ABSURD NARRATIVE OF LIEUTENANT FRANK A. HASKELL ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.